

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-16

**Samsung Electronics America, Inc.
v.
COSCO Shipping Lines Co., Ltd.**

RESPONDENT'S RESPONSE TO COMPLAINANT'S SUBMISSION

On June 30, the Presiding Officer ordered the parties to “briefly list or describe what discovery issues remain between them, and list what they believe they need from the other party to go forward with depositions.” (Doc. 133, at 2) (“Order”). The Presiding Officer cautioned that “the parties should not reargue their motions to compel.” *Id.* Nevertheless, SEA’s Response to the Order (Doc. 137) (“SEA Resp.”) takes a different tack: SEA reargues at length its motions to compel and the only remaining discovery issues it purports to describe are SEA’s demands to COSCO.

SEA’s submission does not advance its position. COSCO will be producing documents from two additional China custodians SEA requests, and there is no basis for SEA’s demand that COSCO produce documents from additional China custodians. SEA’s remaining discovery demands seek discovery that it is irrelevant, disproportionate, unreasonably cumulative and duplicative, and documents that COSCO does not have but that SEA does. And SEA is not entitled to the one-sided declaration of search methodology it demands. Furthermore, although COSCO may voluntarily produce documents from China, an order compelling China production would be counterproductive because it would trigger a mandatory and indefinite period of review by Chinese government officials.

A. COSCO voluntarily produced documents from three China custodians, will voluntarily produce documents from two more, and production from yet more China custodians would be cumulative and duplicative, unduly burdensome and expensive, and disproportionate to the needs of this case.

COSCO's Opposition to Complainant's Supplemental Motion to Compel (Doc. 130) established that SEA's demand that COSCO produce documents from additional China custodians should be denied. COSCO has produced responsive documents from China-based custodians Tang Wei (of COSCO's Global Sales Division) ("GSD"), Liu Gang (also of GSD), and Liu Shuang (of COSCO's Shanghai Per Diem team) ("SHAPD") — the only COSCO China-located personnel COSCO or SEA identified in their initial disclosures as persons likely to have discoverable information. SEA's assertion that COSCO made only a "partial production" (SEA Resp. at 3) from these custodians is baseless. That COSCO produced "*only 2,700*" documents shows only that COSCO made a good faith effort to produce responsive documents, rather than dump a mass of irrelevant material. Moreover, as COSCO stated in its Response to the Presiding Officer's Order (Doc. 136) ("COSCO Resp."), COSCO intends to voluntarily produce responsive documents from two additional China custodians, Zhao RuiBo and Shan Yin, both of COSCO's American Trade Division ("ATD") and as requested by SEA. And that is notwithstanding SEA's rejection of COSCO's offer to add them as custodians in return for SEA's dismissal of its Supplemental Motion to Compel.¹

SEA's demands for additional custodial collections and searches of COSCO's Zhang Chunyi and Deng Xioban of GSD and SHAPD's Xiang Ling cannot be sustained. COSCO has already produced documents from two GSD custodians, and Global Sales had no responsibility

¹ SEA's indignation that COSCO's offer was "open for barely more than 6 hours" (SEA Resp. at 2) is misplaced; COSCO simply asked for a response within that timeframe so that COSCO could report SEA's response in its Opposition to SEA's Supplemental Motion to Compel (Doc. 130) by the filing deadline set by the Presiding Officer.

or authority to waive or reduce detention charges. (COSCO Opp. to Complainant’s Supp. Motion to Compel, Doc. 130, Ex. 5 Shan Yin Decl. at ¶¶5, 7). COSCO’s SHAPD is an intermediary: it collects information about customers’ requests and complaints and provides that information to ATD. SHAPD did not have authority or responsibility to waive or reduce detention (per diem) invoices, and Ms. Xiang Ling confirms that she had no such authority or responsibility. (COSCO Opp. to Complainant’s Supp. Motion to Compel, Doc. 130, Ex.7, Xiang Ling Decl. at ¶8). COSCO’s ATD, and not GSD or SHAPD, had the authority and responsibility to determine whether to waive or reduce detention charges for standard containers carried in the Transpacific trades to the United States.²

SEA’s complaint that COSCO did not disclose its search methodology or search the files of all “**potentially knowledgeable**” individuals is misguided. (SEA Resp. at 3). SEA has not explained, nor offered to explain, its search methodology, nor has SEA represented that SEA searched the files of all “potentially knowledgeable” SEA personnel or offered to do so. Moreover, the declarations of COSCO personnel establish that COSCO determination of custodians is appropriate. And SEA ignores that COSCO produced documents from nine custodians (and shared custodial files) in the United States—where the deliveries and delays at issue occurred, and the charges of which SEA complains were imposed.³

Most important, SEA’s “no-potential-stone-unturned” demand is disproportionate to the needs of this action and the potential value (if any) of the discovery sought is outweighed by the

² SEA’s assertion that ATD determined whether to waive or reduce **demurrage** charges (SEA Resp. at 5, fn. 1, referring to “D&D” charges) is incorrect. SEA relies on the Lu Guanlin declaration, but it states that ATD had responsibility for waiving “DET” (detention) invoices. *Accord*, COSCO Opp. to Complainant’s Supp. Motion to Compel, Doc. 130, Ex. 5, Shan Yin Decl. at ¶5.

³ COSCO has also produced documents from a Korea-based custodian.

burden and expense it would impose. (COSCO's Opposition to SEA's Supplemental Motion to Compel, Doc. 130 at 5). SEA does not dispute that COSCO spent more than \$804,000 for the collection, review, processing and production documents from three China custodians alone, or that COSCO will voluntarily undertake significant cost to produce responsive, non-privileged documents from two more China-based custodians whom SEA requested. There is no basis to require COSCO to do more.⁴

B. SEA's remaining demands seek discovery that is irrelevant, disproportionate, cumulative and duplicative, burdensome, and documents that COSCO does not have but SEA does.

SEA provides a laundry list of demands from its multiple—and repetitive—motions to compel, asserting they must be satisfied for it to proceed with depositions. Indeed, SEA casts its requests as seeking “foundational” and “critical source” documents. But calling something “foundational” or a “critical source” does not make it so: a duck does not become a horse by calling it one. COSCO has demonstrated in its oppositions to SEA's serial and repetitive motions that SEA is not entitled to the additional discovery that it seeks. Accordingly, COSCO incorporates those oppositions, and responds only briefly here.

- **Internal policies and procedures.** Without waiving its objections, COSCO produced internal policies and procedures from North America (not just current versions as SEA contends). But the key point is that internal policies and procedures are irrelevant. The Presiding Officer denied SEA's similar request in *Samsung Electronics America, Inc. v.*

⁴ Indeed, SEA's disregard for proportionality—or for compromise—is shown by the history of SEA's Supplemental Motion to Compel. Before SEA requested permission to file its motion, COSCO informed SEA that SEA had failed to produce documents from SEA personnel who were intimately involved in key matters in this action, and suggested that the parties should seek to jointly resolve their concerns about custodians. *See* June 9, 2026 Email from Lang to ALJ, 10:59 pm. SEA refused to do so. *Id.*

Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd., Dkt. No. 24-17, 2026 WL 794116, Doc. 120 at 2, ¶6; *see also*, COSCO Opp. to SEA’s Supp. Motion to Compel, Doc. 130 at 6-7.

- **Business performance self-assessments and evaluation criteria and demurrage assessment memorandum** — These aggregate, policy-level and financial performance documents cover a wide range of matters and are irrelevant to the reasonableness of charges. *See* COSCO Opp. to SEA’s Supp. Motion to Compel, Doc. 130 at 6-7.
- **Invoices, job orders, and sea waybills** — COSCO produced the invoices that COSCO issued, and the job orders and sea waybills that it located upon a reasonable search. SEA demands invoices **issued by third parties**, but COSCO cannot produce what it does not have. Moreover, if, as SEA contends, it paid invoices issued by others, it should have those invoices. *See* COSCO Opp. to SEA’s Second Motion to Compel, Doc. 113 at 5-6.
- **EDI/Database Records/Shipment data** — COSCO satisfied its obligations in responding to SEA’s requests for EDI/database records, and shipment data. COSCO is not required to endure the burden and expense of creating bespoke reports in the format SEA dictates. *See* COSCO Opp. to SEA’s First Motion to Compel, Doc. 102 at 6-8; COSCO Opposition to SEA’s Second Motion to Compel, Doc. 113 at 9. If SEA now seeks the raw “export” of COSCO’s databases (SEA Resp. at 9) it has neither identified the discovery demand which calls for their production, let alone why SEA is entitled to them.
- **Third-Party Documents, “Rail Documents and ‘Subcontractor Agreements’”** — Without waiving its objections, COSCO produced agreements with marine terminals and stevedores. But again, as SEA should be aware, it is not entitled to the irrelevant documents it seeks. *Samsung Electronics America, Inc. v. Orient Overseas Container*

Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd., Dkt. No. 24-17, 2026 WL 794116, Doc. 120 at 2, ¶6 (rejecting SEA’s demand for OOCL’s agreements with third parties). *See* COSCO Opp. to SEA’s Second Motion to Compel, Doc. 113 at 5.

- **Identification of COSCO information systems** — This has been provided by COSCO’s Responses and Objections to SEA’s Third Interrogatories and Requests for Admission.

C. SEA’s one-sided demand for a sworn declaration is unreasonable, unfair, unsupported, and disproportional.

In addition to its discovery demands, SEA asserts it must have a sworn declaration from COSCO describing its “search methodology,” custodians considered and selected, systems searched, and date ranges. (SEA Resp. at 8). COSCO demonstrated in its Opposition to SEA’s Supplemental Motion to Compel that SEA’s one-sided demand is unreasonable, unfair, unsupported, and is not proportional to the needs of this action. (COSCO Opposition to Supplemental Motion to Compel, Doc. 130 at 8-10). Among other things, SEA refused to provide a similar declaration, did not negotiate custodians and search terms when the parties negotiated their ESI protocol, and relied on an order in another case based on facts that do not exist here. And in contrast to SEA, COSCO readily collected and produced documents from all persons identified in the parties’ initial disclosures. *Id.* Moreover, SEA predicated its request on COSCO’s document production from China (SEA Supplemental Motion to Compel, Doc. 123. at 8) yet SEA ignored COSCO’s willingness to voluntarily produce documents from two additional China-based custodians (as COSCO will do) and made its Supplemental Motion after refusing to confer with COSCO to try to resolve each party’s requests for additional custodians. There is no basis for the intrusive declaration that SEA demands.

D. An order compelling COSCO to produce documents from China would result in unnecessary delay and is contrary to comity principles.

COSCO explained in its Opposition to SEA's Supplemental Motion that although COSCO may voluntarily produce documents from China, that even apart from comity concerns, an order compelling COSCO to produce documents from China would be counterproductive and result in delay because under Chinese law it would trigger a mandatory and indefinite period of review by Chinese government officials. That may be what SEA wants, but it would not promote a decision on the merits of SEA's claims.

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Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on this 17th day of July, 2026, a true and correct copy of the foregoing Submission was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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